

25SMCV02996 25SMCV02996

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Case Number: 25SMCV02996 Hearing Date: July 7, 2026 Dept: N

TENTATIVE RULING

Plaintiff Sean Jordan's Motion for Sanctions is DENIED.

Jordan to give notice.

REASONING

Legal Standard

Code of Civil Procedure section 128.7 requires that an attorney sign all pleadings, petitions, notices of motions, and other similar papers. (Code Civ. Proc., § 128.7, subd. (a).) Thus, by presenting a pleading or other similar paper to the court, an attorney is certifying that to the best of his or her knowledge, information, and belief, "formed after an inquiry reasonable under the circumstances," all of the following conditions are met:

- (1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.
- (2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.
- (3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
- (4) The denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief.

(Code Civ. Proc., § 128.7, subd. (b).)

The section "authorizes trial courts to impose sanctions to check abuses in the filing of pleadings, petitions, written notices of motions or similar papers." (Musaelian v. Adams (2009) 45 Cal.4th 512, 514.) A violation of any of these certifications may

give rise to sanctions. (Eichenbaum v. Alon (2003) 106 Cal.App.4th 967, 976.) An objective standard of review applies to section 128.7. (San Diegans for Open Government v. City of San Diego (2016) 247 Cal.App.4th 1306, 1318; Bockrath v. Aldrich Chemical Co., Inc. (1999) 21 Cal.4th 71, 82.) Whether a claim is meritless or for the sole purpose of harassment must be evaluated by examining whether the factual allegations of the claim had evidentiary support. (580 Folsom Associates v. Prometheus Development Co. (1990) 223 Cal.App.3d 1, 22.) “Code of Civil Procedure section 128.7 imposes a lower threshold for sanctions than is required under Code of Civil Procedure section 128.5. This is because Code of Civil Procedure section 128.7 requires only that the conduct be ‘objectively unreasonable,’ while Code of Civil Procedure section 128.5 also requires ‘a showing of subjective bad faith.’ (Citation.)” (Guillemin v. Stein (2002) 104 Cal.App.4th 156, 167.)

Self Represented Party

“Although self-represented litigants are not entitled to special treatment, they are entitled to the same treatment as a represented party. ... ‘Trial judges must acknowledge that in propria persona litigants often do not have an attorney’s level of knowledge about the legal system and are more prone to misunderstanding the court’s requirements.’ (Citation). When one party has counsel and the other does not, the trial court ‘should monitor to ensure the in propria persona litigant is not inadvertently misled, either by the represented party or by the court... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson.’” (Petrosyan v. Prince Corp. (2013) 223 Cal.App.4th 587, 594.)

July 29, 2025, Declaration

The motion arises from the July 29, 2025, filed declaration for an automatic 30-day extension to respond to the complaint. Plaintiff contends that paragraph 4 of the statement regarding the inability to meet and confer due to the health conditions of Plaintiff at the relevant time constitutes a false statement. [Motion, 3:4-15.]

The paragraph reads: “4. In accordance with Defendants’ meet and confer requirements, on July 18, 2025, I sent Plaintiff SEAN JORDAN (“Plaintiff”) written correspondence requesting that we meet and confer via telephone regarding deficiencies in his complaint that are subject to demurrer. On July 22, 2025, Plaintiff replied to me via email stating that due to health conditions that Plaintiff relates he is suffering from, he would not be able to confer telephonically. As such, we have not been able to meet our obligations to attempt to meet and confer thus far.”

Jordan represents denial of any stipulated extension on July 30, 2025, but also admits to insisting on “in writing” conference only, with an “in person” meeting upon a grant of “reasonable accommodation, if “strictly necessary.” [Motion, 3:18-24.]

On February 12, 2026, Defense counsel “declined to withdraw or correct the challenged declaration,” thereby leading to the subject motion. [Motion, 3:25-4:3.]

Safe Harbor

Defendant in opposition challenges the motion on grounds of lack of compliance with the safe harbor provision, lack of articulation of sanctionable conduct, and lack of facts supporting sanctions.

On a procedural level, the motion alleges compliance with the safe harbor provision on July 30, 2025. (Code Civ. Proc., § 128.7, subd. (c)(1).) Plaintiff appears to rely on a July 30, 2025, email, whereby Plaintiff wrote in part:

“I do not stipulate to any extension. As stated repeatedly, I remain willing to meet and confer in writing—or, if strictly necessary, in person with reasonable accommodation. I declined a telephone conference solely for documented medical and language-access reasons. Any contrary statement in your 29 July 2025 declaration is false and misleading. Your declaration fails to satisfy CCP § 430.41(a)(1): it provides no specific legal basis for any objection to any cause of action. Accordingly, the

declaration is non-compliant and cannot support an extension.

"Unless, by Friday, 1 August 2025, you deliver all of the following, I will file a declaration asking the Court to deny your extension:

"1. A red-lined letter or table identifying every cause of action you challenge; 2. For each cause, the precise element you claim is missing; 3. The controlling authority supporting each objection; 4. Corrections to the false statements in your 29 July declaration regarding (a) method of service, (b) my repeated offers to confer, and (c) the nature of my accommodation request.

"Your assertion of overnight or first-class service is incorrect; I have never been served in that manner. If you contend otherwise, produce proof of service. Likewise, describing my accommodation request as a refusal to confer is materially misleading. If—and only if—you comply in full by the deadline, I will consider a without-prejudice extension, reserving all rights, including filing a First Amended Complaint on or before 15 August 2025. Please confirm by close of business 1 August that you will provide the required objections, correct your declaration, and restrict future communication to writing unless another modality is expressly agreed. If you fail to comply, I will file my declaration seeking denial of the extension and any other appropriate relief." [Declaration of Sean Jordan.]

The safe harbor language requires actual identification of the offending item and a demand for withdrawal. "Notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected. If warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney's fees incurred in presenting or opposing the motion. Absent exceptional circumstances, a law firm shall be held jointly responsible for violations committed by its partners, associates, and employees." (Code Civ. Proc., § 128.7, subd. (c)(1).)

The email accuses counsel of a false statement, but by no means demands the categorical and specific withdrawal of paragraph (four) 4. Plaintiff only demands a meet and confer statement by certain deadlines. The safe harbor provision therefore lacks compliance.

Substantive Sanctions Request

Jordan continues to rely on the alleged false statement. Counsel in opposition cites to Plaintiff's own July 22, 2025, email exchanges whereby Plaintiff represents unavailability to meet and confer due to "surgery, school and medical treatment." [Jordan Decl.] Jordan indicates a preference for email correspondence, but also ultimately agrees to an extension to August 25, 2025. [Jordan Decl.] The demurrer was filed on August 11, 2025. Plaintiff in reply describes the opposition as "meritless and pretextual." Plaintiff proceeds to describe the extension as an effort to "evade accountability."

Plaintiff lacks any factual support regarding the lack of veracity regarding paragraph 4 (four) given Plaintiff's own attached exhibits of corresponding email from July 22 and July 30, 2025. If Plaintiff wishes to proclaim under oath as to the falsity of the content of the emails and therefore potentially admitting to a false presentation of fact to this court in the instant motion, Plaintiff may make such a representation in a separate motion with the understanding of the Fifth Amendment right against self-incrimination.

Underlying Statutory Compliance

Defendant maintains that even if the court considered the merits, Defendant remained entitled to an automatic extension.

“The parties shall meet and confer at least 5 days before the date the responsive pleading is due. If the parties are not able to meet and confer at least 5 days before the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer. The 30-day extension shall commence from the date the responsive pleading was previously due, and the demurring party shall not be subject to default during the period of the extension. Any further extensions shall be obtained by court order upon a showing of good cause.” (Code Civ. Proc., § 430.41, subd. (a)(2).)

As addressed above, the extension was properly supported and factually agreed upon. The statement regarding unavailability to telephonically confer with Western Holdings Group dba Los Angeles Property Management Group supports the automatically available extension for time to file a responsive pleading, such as a demurer and/or motion to strike. The request was also made for purposes of examining potential insurance coverage, which possibly benefitted Plaintiff. Plaintiff's response was provided after the initial filing deadline, thereby necessitating the extension declaration. The demand for a further meet and confer were only provided after the lapse of the deadline extension cutoff, and in order to avoid default. [Declaration of John Barbar, ¶¶ 3-8, 10, 12, 14.]

The declaration for extension was therefore timely and properly filed. (Code Civ. Proc., § 430.41, subd. (a)(2).) The court ruled on the demurrer and the case is now at issue. Nothing in the course of conduct establishes any prejudicial delay or other material impacts invoking the concerns of section 128.7.

Conclusion

The motion for sanctions is therefore denied. The request for counter sanctions in the opposition is also denied. Western Holdings Group dba Los Angeles Property Management Group needs to file an actual separate motion.